DIGITAL POWER

Leave and absence regulations

Annual leave and sick leave

Why these regulations?

We feel it is important to provide clarity on the (legal) rules that apply to annual leave and sick leave. This way, there are no surprises when a situation arises, and our agreements always remain clear.

Annual leave

Per calendar year, you are entitled to 27 vacation days. If your employment lasts less than one year and/or if the working time is not a full-time working week, the number of vacation days will be awarded proportionally. Also, if the working hours are adjusted in the course of employment (more or less hours per week), the right to vacation days will be adjusted accordingly.

Requesting/registering annual leave

You should always register your annual leave beforehand in My InSite. Before the annual leave can start, the Operations Manager must first approve the annual leave request.

Conditions for taking annual leave

- You can take annual leave after having timely consulted the Operations Manager.
- Annual leave requests of less than 6 days are automatically approved.
- The rule for July and August is that you can take a maximum of 3 consecutive weeks. Exceptions can be discussed but are not a given.
- In the event of a busy work schedule, the annual leave may be changed in consultation with the relevant employees.
- The minimum annual leave days that must be taken per year is 20 (based on full-time employment and pro rata for part-time employees).
- Any leftover annual leave days may be carried over to a new calendar year.
- Digital Power may allocate a maximum of 5 compulsory leave days per year. This can occur when, for example, there is idle time/no project/no assignment or the company is obliged to close (around Christmas or New Year).
- Preferably, you always take vacation days as time off, but through Alleo you can sell up to 16 vacation hours based on a full-time employment. Other vacation days will not be paid out in cash. Except when your employment ends.

Expiry and limitation period for leave days

The statutory annual leave (20 leave days per year based on full-time employment) that you do not take will expire 6 months after the calendar year in which you accrued them. This also applies to employees who are incapacitated for work. Non-statutory leave days are subject to a 5-year limitation period.

Public holidays

For commonly recognised Dutch public holidays, your salary will continue to be paid insofar as they fall on days that would qualify as a regular working day and do not fall on a Saturday and/or Sunday. In cases where an employee works on alternate days per week or has shorter working hours per day, public holidays will be allocated proportionally.

Digital Power recognises the following public holidays:

- New Year's Day
- Easter Monday
- King's Day
- Liberation Day in quinquennial years
- Ascension Day
- Whit Monday
- Christmas Day and Boxing Day

Special leave

Under certain circumstances, you are entitled to special leave with pay. Please consult the overview below for the situations to which special leave applies:

For your own wedding or registered partnership	2 days (including the civil ceremony)
In the case of a wedding of: • your child, stepchild, foster child or grandchild • brother, sister, brother/sister-in-law, half-brother/sister, step-brother/sister or foster brother/sister • one of your parents or parents-in-law	1 day if you attend the wedding and the day is on your working day
25th, 40th, 50th or 60th wedding anniversary of: • yourself • parents, in-laws, step or foster parents • grandparents (of your partner) • child (including step and foster children)	1 day if you attend the wedding anniversary and the day is on your working day
The passing away of: • husband, wife or partner • dependent (step, adopted or foster) children	From the day of passing up to and including the funeral day if you attend the funeral and the day is on your working day

parent, in-law (including parents-in-law, step and foster parents)	
The passing away of: grandparent (of your partner) grandchild (of your partner) brother or sister (of your partner)	2 days (the day of death and the day of the funeral) if you attend the funeral and the day is on your working day
The passing away of: great-grandparent (of your partner) great-grandchild (of your partner) niece or nephew of your brothers/sisters (of your partner) uncle or aunt (of your partner) great-great-grandparent (of your partner) great-nephew or niece (grandchildren of your brothers or sisters (of your partner)) cousin (children of the siblings of your parents (in-law)) great-uncle or great-aunt (uncles or aunts of your parents (in-law))	1 day if you attend the funeral and the day is on your working day
If you have been appointed executor of the will	1 day
relocating	1 day per year
Expanding your family (maternity leave)	once your weekly working hours

Statutory leave provisions

Various forms of leave are stipulated in the Work and Care Act (WAZO), such as care leave, calamity leave, parental leave, maternity leave, post-maternity leave and supplementary childbirth leave. Digital Power adheres to the content of this Act with regard to these specific leave provisions.

For more information, please visit verlofregelaar.nl.

Doctor, dentist and medical specialist

You are expected to make visits to a general practitioner, dentist and medical specialist in your own time/take vacation days/compensate these visits with time for time. In case it is impossible to plan visits with a medical specialist in your own time, please contact HR as it may be possible to cover appointments up to a maximum of 2 hours.

Illness and absenteeism

Calling in sick

It may happen that you will not be able to work as a result of illness.

When you're waking up ill or get ill during the day you should always inform via a telephone call:

- Consultants on an assignment: your Business Manager
- Consultants on multiple assignments: the Business Manager of the assignment your absenteeism has the most impact on (most hours, a deadline)
- Consultants on the bench: your Teamlead
- Staff members: your manager

You still need to call in sick through My InSite or the AFAS Pocket app as well. Make sure to also report better through My InSite or the AFAS Pocket app.

When you call in sick, you supply the following information:

- How long the absence is likely to last.
- At which (nursing) address (e.g. hospital) and telephone number you can be reached.
- Is there a safety-net situation? A safety-net situation means incapacity for work due to pregnancy, structural, functional limitations (formerly occupationally disabled), or an organ donation (you are not obliged to specify this).
- What work you might still be able to perform.
- Is the incapacity for work due to an accident for which a third party is liable?

If you are ill for (much) longer than a few days, you and Digital Power will have to deal with the Eligibility for Permanent Invalidity Benefit (Restrictions) Act (WVP). This Act aims to limit and/or prevent long-term absenteeism due to illness. Both parties are subject to a number of obligations under this Act.

It is also important for you to comply with certain Digital Power regulations when you are ill. These absenteeism regulations concern the cooperation Digital Power expects from you in terms of establishing your incapacity for work and reintegration possibilities. It is very important that you comply with Digital Power's absenteeism regulations; otherwise, you may face sanctions, such as the suspension of your salary, dismissal or fines imposed by the Employee Insurance Agency (UWV).
Digital Power is affiliated with Concept Arbo, a nationwide Occupational Health and Safety Service, to monitor and supervise sick employees.

Failure to report sick on time

Digital Power is obliged to report you sick to the Occupational Health & Safety Service as soon as possible in order to avoid penalties. If you have reported sick too late twice and it happens a third time, Digital Power is entitled to deduct a waiting day on the third occasion. You will then receive no pay on the 1st day of being ill.

The first 2 weeks of sick leave

During the first 2 weeks of your absenteeism, you are always available between 10.00 - 12. 00 hours at the specified (nursing) address for (unannounced) contact with Digital Power or Concept Arbo. If you are not present at the specified address, someone else at that address should be able to relay where you can be reached. If you are staying at another address, permanently or temporarily, report this to the Operations Manager and HR within 24 hours. You may leave the specified address for visits to a company doctor, GP, physiotherapist or other medical specialists. You may also leave the address for work resumption or if HR has granted permission.

Consultation visit

You are obliged to comply with a request to appear at the company doctor's practice at all times. Digital Power receives feedback from the Occupational Health and Safety Service on agreements made during the consultation visit. At the end of the consultation visit, you consent to the content and forwarding of the feedback to Digital Power.

Preventive consultation visit to the company doctor

You can visit the company doctor's preventive consultation, a so-called working conditions consultation. This consultation is primarily meant for questions and/or complaints related to your work and health. Please contact HR or Concept Arbo for more information on this.

Preventive medical examination (PME)

A PME is aimed at improving your health as an employee. Digital Power offers this option through our Occupational Health and Safety Service, Concept Arbo. Participation is voluntary. The examination can be a short questionnaire or an extensive physical and sometimes psychological medical examination. A company doctor is always involved. Please contact HR for more information on this.

Medical examination

You are obliged to cooperate if a medical examination is necessary to assess your (in)capacity for work. The medical examination is carried out by, or on the instructions of, Concept Arbo's company doctor.

Occupational Health and Safety Service

Information regarding your absenteeism will be passed on to Concept Arbo. Following the sick report, the Operations Manager or HR will contact you in the first week of illness to inquire about your situation and to discuss any measures related to the absence. Agreements can also be made about resuming work and how often and in what way there will be contact between you and Digital Power.

If Concept Arbo asks you for more (medical) information about the reason for the absenteeism, you are obliged to cooperate. If you are unable to do so due to, for example, hospitalisation, someone else must provide the information. This information is intended exclusively for Concept Arbo. The data collected by Concept Arbo are subject to rules such as professional confidentiality, the General Data Protection Regulation (AVG) and the Concept Arbo Privacy Policy. No organisation receives this data without written consent from you. An exception is the name of the employer and the expected recovery date.

The first year of sick leave

The first year of sick leave you receive 100% salary. In addition to the conditions agreed in your employment contract, the following obligations under the Eligibility for Permanent Incapacity Benefit (Restrictions) Act (WVP) apply for the 1st year of sick leave:

- When you have been ill for 6 weeks, the Occupational Health and Safety Service or company doctor must make a problem analysis. This states why you can no longer work, what the possibilities for recovery are and when you expect to be able to resume work.
- Within 8 weeks of reporting sick or no later than 2 weeks after the problem analysis, Digital Power will draw up an action plan in consultation with you. This plan describes what the two of us will do to ensure that you can return to work. The action plan is part of the reintegration file.
- Digital Power chooses a case manager in consultation with you. This person supervises and monitors the implementation of the action plan.
- If long-term absenteeism is imminent, Digital Power must keep up a reintegration file. This contains the course of the sick leave and all activities both parties have undertaken to enable you to resume work.
- Digital Power will discuss its progress with you at least every 6 weeks, preferably more often.
- In the 42nd week of your illness, Digital Power must report you to the Employee Insurance Agency (UWV).

The second year of sick leave

The second year of sick leave you receive 70% salary. For the second year of sick leave, the following obligations under the Eligibility for Permanent Incapacity Benefit (Restrictions) Act (WVP) apply:

- If you remain ill for an unexpectedly long time, a first-year evaluation will follow between weeks 46 and 52. We evaluate the past year and determine what reintegration result we want to achieve in the second year of illness and how we will achieve it.
- If you are still not fully reintegrated after 20 months, Digital Power will draw up a reintegration report in consultation with you. In this report, you, the company doctor and Digital Power will describe their views on your reintegration.
- If all efforts fail to lead to work resumption, you will receive an Incapacity Benefit Application Form (WIA) from the Employee Insurance Agency (UWV) in the 87th week. You must return this form to the UWV within 3 weeks. Soon afterwards, the UWV will assess the reintegration report and conduct a WIA examination. If the legal conditions are met, the incapacity benefit will start. If the UWV finds that Digital Power or you have not done enough to reintegrate, this may result in a reduction of your benefit or an extension of Digital Power's obligation to continue to pay wages.

- If necessary, Digital Power must adapt your work, workplace and/or work equipment.

Suitable work

If you are unable to return to your original position, Digital Power will offer you suitable work within the company, for example, working part-time or with an adapted range of tasks. In extreme cases, Digital Power may offer you another position or a job with another employer. If you refuse to accept this work, this could result in the cessation of your wages and even dismissal.

A reintegration company can assist Digital Power and you in returning to work or other work within the same company or with another employer.

Work resumption upon recovery

You are required to resume work as soon as you are able to do so. You report the resumption of work (recovery notification) to the Operations Manager and HR, after which we will inform the Occupational Health and Safety Service. You, therefore, do not have to wait on instruction to resume work.

Holidays during work disability

If you want to go on holiday during your incapacity for work, you need prior permission from the Operational Manager and HR. This permission may be based on the advice of the Occupational Health and Safety Service. The holiday must not impede your recovery and/or reintegration.

Incapacity for work during holidays

If the incapacity for work arises during your holiday, you retain the right to the holiday days missed as a result, provided you inform HR immediately of your incapacity for work and comply with the rules laid down. These rules include, among other things, consulting a doctor and submitting a medical statement on the nature and duration of the illness.

Accrual of holidays during illness

If you are (partially) ill, your accrual of holiday hours continues as usual. If you want to go on holiday during incapacity for work, all annual leave days will also be written off.
It is also possible that you become ill when on holiday. Make sure you call in sick following the steps provided on page 5, Calling in sick. If you do so, HR will be in touch and will convert your vacation days to sick days. Do not forget to report better through My InSite or the AFAS Pocket app as well.

Athletes and dangerous hobbies

Digital Power will gladly accommodate you if you practice a sport in your spare time or have a dangerous hobby involving more than the usual accident risks. Digital Power is willing to make arrangements in consultation with you if sick leave is necessary as a result of the sport or hobby.

Objections and complaints

If you disagree with advice or statements by the Occupational Health and Safety Service or with proposals or activities by Digital Power, you can request a second opinion (expert opinion) from the Employee Insurance Agency (UWV). The applicant will bear the costs of a second opinion.

Sanctions

If you do not comply with Digital Power's absenteeism regulations or the Eligibility for Permanent Invalidity Benefit (Restrictions) Act (WVP) or do not cooperate sufficiently in your recovery, this may result in a warning. If you do not improve your compliance, Digital Power has the right to suspend or even stop your salary payment.

Trust Officer

Digital Power believes it is important that everyone treats each other with respect and that you feel safe in your workplace. Digital Power will provide guidance in the event of an incident of unwanted behaviour. If a situation arises in which you do not feel comfortable, you can discuss it with a colleague, with the Operational Manager, with our Trust Officer Annemiek Vonk or with an occupational social worker from the Occupational Health and Safety Service (Concept Arbo). The report of the complaint will be treated confidentially.

Collective health insurance scheme

Digital Power has concluded a collective health insurance scheme with ONVZ, through which you, as a Digital Power employee, benefit from a 5% discount on basic insurance and 10% on supplementary insurance. This collective insurance scheme is without obligation. As such, there is no obligation to participate in this scheme.

You can calculate the premium on ONVZ's website (www.onvz.nl). Under 'choose another (employer) collective scheme', you can enter Digital Power or the following collective scheme number 100175.